

WEBSITE PRIVACY POLICY

<https://smartshop-pfg.vercel.app/>

I. PRIVACY AND DATA PROTECTION POLICY

In compliance with current legislation, SmartShop (hereinafter also referred to as the “Website”) undertakes to adopt the necessary technical and organizational measures, in accordance with the level of security appropriate to the risk associated with the data collected.

Laws Incorporated in This Privacy Policy

This privacy policy complies with current Spanish and European regulations regarding the protection of personal data on the internet. Specifically, it complies with the following regulations:

- Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (GDPR).
- Organic Law 3/2018 of December 5 on the Protection of Personal Data and the Guarantee of Digital Rights (LOPD-GDD).
- Royal Decree 1720/2007, of December 21, approving the Regulations implementing Organic Law 15/1999, of December 13, on the Protection of Personal Data (RDLOPD).
- Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI-CE).

Identity of the Data Controller

The data controller for the personal data collected on SmartShop is: Juan Fernández Cerezo, with Tax ID: 05461992K (hereinafter, the Data Controller). His contact details are as follows:

Contact email: juanfercer@gmail.com

Personal Data Registry

In compliance with the provisions of the GDPR and the LOPD-GDD, we inform you that the personal data collected by SmartShop through the forms provided on its pages will be incorporated into and processed in our database for the purpose of facilitating, streamlining, and fulfilling the commitments established between SmartShop and the User, or maintaining the relationship established in the forms the User fills out, or to respond to a request or inquiry from the User. Likewise, in accordance with the provisions of the GDPR and the LOPD-GDD, unless the exception provided for in Article 30.5 of the GDPR applies, a record of processing activities is maintained that specifies, according to their purposes, the processing activities carried out and the other circumstances established in the GDPR.

Principles Applicable to the Processing of Personal Data

The processing of the User's personal data shall be subject to the following principles set forth in Article 5 of the GDPR and in Article 4 et seq. of Organic Law 3/2018 of December 5 on the Protection of Personal Data and the Guarantee of Digital Rights:

- Principle of lawfulness, fairness, and transparency: The User's consent shall be required at all times, following fully transparent information regarding the purposes for which personal data is collected.
- Principle of purpose limitation: Personal data shall be collected for specified, explicit, and legitimate purposes.
- Principle of data minimization: the personal data collected shall be limited to what is strictly necessary in relation to the purposes for which it is processed.
- Principle of accuracy: personal data must be accurate and kept up to date.
- Principle of storage limitation: personal data shall only be retained in a form that permits identification of the User for as long as is necessary for the purposes of processing.
- Principle of integrity and confidentiality: personal data shall be processed in a manner that ensures its security and confidentiality.
- Principle of proactive accountability: the Data Controller shall be responsible for ensuring that the above principles are complied with.

Categories of personal data

The categories of data processed by SmartShop are solely identifying data. Under no circumstances are special categories of personal data processed within the meaning of Article 9 of the GDPR.

Legal basis for the processing of personal data

The legal basis for the processing of personal data is consent. SmartShop undertakes to obtain the User's express and verifiable consent for the processing of their personal data for one or more specific purposes.

The User has the right to withdraw their consent at any time. Withdrawing consent is just as easy as giving it. As a general rule, the withdrawal of consent will not affect the use of the Website.

Whenever the User is required or able to provide personal information via forms to make inquiries, request information, or for reasons related to the content of the Website, the User will be informed if completing any of these fields is mandatory because they are essential for the proper execution of the requested action.

Purposes of the processing of personal data

Personal data is collected and managed by SmartShop for the purpose of facilitating, streamlining, and fulfilling the commitments established between the Website and the User, or maintaining the relationship established through the forms completed by the User, or to respond to a request or inquiry.

Likewise, the data may be used for commercial purposes related to personalization, operations, and statistics, as well as for activities inherent to SmartShop's corporate purpose, including data extraction, storage, and marketing studies to tailor the Content offered to the User and to improve the quality, functionality, and navigation of the Website.

At the time the personal data is collected, the User will be informed of the specific purpose or purposes for which the personal data will be processed; that is, the use or uses to which the collected information will be put.

Retention periods for personal data

Personal data will only be retained for the minimum time necessary for the purposes of its processing and, in any case, only for the following period: 90 years, or until the User requests its deletion.

At the time personal data is collected, the User will be informed of the period during which the personal data will be retained or, when that is not possible, the criteria used to determine this period.

Recipients of Personal Data

The User's personal data will not be shared with third parties.

In any case, at the time the personal data is collected, the User will be informed of the recipients or categories of recipients of the personal data.

Personal Data of Minors

In accordance with Article 8 of the GDPR and Article 7 of Organic Law 3/2018 of December 5 on the Protection of Personal Data and Guarantee of Digital Rights, only individuals over the age of 14 may lawfully consent to the processing of their personal data by SmartShop. In the case of a child under 14 years of age, the consent of the parents or guardians is required for the processing, and such processing shall only be considered lawful to the extent that they have authorized it.

Confidentiality and Security of Personal Data

SmartShop undertakes to adopt the necessary technical and organizational measures, in accordance with the level of security appropriate to the risk posed by the collected data, to ensure the security of personal data and prevent the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized disclosure of or access to such data.

However, since SmartShop cannot guarantee the impregnability of the internet or the total absence of hackers or others who fraudulently access personal data, the Data Controller undertakes to notify the User without undue delay when a personal data breach occurs that is likely to result in a high risk to the rights and freedoms of natural persons. In accordance with Article 4 of the GDPR, a personal data breach is defined as any breach of security leading to the accidental or unlawful destruction, loss, alteration,

unauthorized disclosure of, or access to, personal data transmitted, stored, or otherwise processed.

Personal data shall be treated as confidential by the Data Controller, who undertakes to ensure, through a legal or contractual obligation, that such confidentiality is respected by its employees, associates, and any person to whom the information is made accessible.

Rights Arising from the Processing of Personal Data

The User has the following rights regarding SmartShop and may, therefore, exercise the following rights recognized in the GDPR and Organic Law 3/2018 of December 5 on the Protection of Personal Data and Guarantee of Digital Rights against the Data Controller:

- Right of access: This is the User's right to obtain confirmation as to whether or not SmartShop is processing their personal data and, if so, to obtain information regarding their specific personal data and the processing that SmartShop has carried out or is carrying out, as well as, among other things, the available information regarding the origin of such data and the recipients of the communications made or planned regarding the same.
- Right to rectification: This is the User's right to have their personal data modified if it is inaccurate or, taking into account the purposes of the processing, incomplete.
- Right to erasure ("the right to be forgotten"): This is the User's right, unless otherwise provided by applicable law, to have their personal data erased when such data is no longer necessary for the purposes for which it was collected or processed; the User has withdrawn consent to the processing and there is no other legal basis for it; the User objects to the processing and there is no other legitimate reason to continue it; the personal data has been processed unlawfully; the personal data must be erased to comply with a legal obligation; or the personal data was obtained as a result of a direct offer of information society services to a child under 14 years of age. In addition to erasing the data, the Data Controller, taking into account available technology and the cost of implementation, must take reasonable measures to inform other controllers processing the personal data of the data subject's request to remove any links to such personal data.
- Right to restriction of processing: This is the User's right to restrict the processing of their personal data. The User has the right to obtain restriction of processing when they contest the accuracy of their personal data; the processing is unlawful; the Data Controller no longer needs the personal data, but the User needs it to assert legal claims; and when the User has objected to the processing.
- Right to data portability: If the processing is carried out by automated means, the User has the right to receive their personal data from the Data Controller in a structured, commonly used, and machine-readable format, and to transmit it to another data controller. Whenever technically possible, the Data Controller will transmit the data directly to that other controller.
- Right to object: This is the User's right to prevent the processing of their personal data or to have SmartShop cease processing it.

- Right not to be subject to a decision based solely on automated processing, including profiling: This is the User's right not to be subject to an individualized decision based solely on the automated processing of their personal data, including profiling, unless otherwise provided by applicable law.

Thus, the User may exercise their rights by sending a written communication addressed to the Data Controller with the reference "GDPR – <https://smartshop-pfg.vercel.app/>," specifying:

- The User's first and last names and a copy of their ID card. In cases where representation is permitted, identification of the person representing the User by the same means will also be required, as well as a document proving such representation. The photocopy of the ID card may be replaced by any other legally valid means of proving identity.
- Request stating the specific reasons for the request or the information to be accessed.
- Address for notification purposes.
- Date and signature of the applicant.
- Any document supporting the request being made.

This request and any other attached documents may be sent to the following address and/or email:

Email: juanfercer@gmail.com

[Links to Third-Party Websites](#)

The Website may include hyperlinks or links that provide access to third-party websites other than SmartShop, and which are therefore not operated by SmartShop. The owners of such websites will have their own data protection policies, and they themselves are responsible, in each case, for their own data files and privacy practices.

[Complaints to the supervisory authority](#)

If the User believes there is a problem or a violation of applicable regulations regarding the way their personal data is being processed, they have the right to effective judicial protection and to file a complaint with a supervisory authority, specifically in the country where they have their habitual residence, place of work, or the location of the alleged violation. In the case of Spain, the supervisory authority is the Spanish Data Protection Agency (<https://www.aepd.es/>).

II. ACCEPTANCE AND CHANGES TO THIS PRIVACY POLICY

The User must have read and agreed to the terms regarding the protection of personal data contained in this Privacy Policy, as well as consent to the processing of their personal data so that the Data Controller may proceed with such processing in the manner, within the timeframes, and for the purposes indicated. Use of the Website implies acceptance of its Privacy Policy.

SmartShop reserves the right to modify its Privacy Policy at its sole discretion or in response to legislative, jurisprudential, or doctrinal changes by the Spanish Data Protection Agency. Changes or updates to this Privacy Policy will not be explicitly notified to the User. The User is advised to consult this page periodically to stay informed of the latest changes or updates.

This Privacy Policy was updated to comply with Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (GDPR) and Organic Law 3/2018 of December 5 on the Protection of Personal Data and the Guarantee of Digital Rights.

This website Privacy Policy document was created using the [free online web privacy policy template generator](#) on April 19, 2026.